



Plan Notice Delivery Services Existing Client Election Form

ADP will provide or terminate Plan Notice Delivery Services, as elected below, in accordance with the Plan Notice Delivery Services Appendix to the Administrative Services Agreement and as set forth in the Administration Manual provided by ADP to Client. This Election Form must be received by ADP fully executed and in good order at least ten (10) business days before the date entered in Section A, B, or C, as applicable, to be implemented on that date. The fees for such services are stated in the attached Supplement to ADP's Compensation and Fee Disclosure Statement.

A. Begin Services

- ☐ Client elects Plan Notice Delivery Services and directs ADP to begin initiating delivery of the Notice(s) selected in Section D. below to the populations selected in Section E. below starting on the first business day after the following date: _____ (Also complete Sections D. and E. of the Election Form)

B. Terminate Services

- ☐ Client directs ADP to terminate Plan Notice Delivery Services on the following date: _____
(Note: notwithstanding termination of Plan Notice Delivery Services, deliveries initiated before the effective date shown may continue to be mailed for up to five (5) business days.)

C. Change Services

1. Change Notices to Deliver

- ☐ Client elects to change its Plan Notice Delivery Services elections by adding and/or removing one or more notices as indicated in Section D. below starting on the following date: _____ (Also complete Section D. of the Election Form)

2. Change Delivery Group

- ☐ Client elects to change its Plan Notice Delivery Services elections by modifying the population to whom Notices will be delivered starting on the following date: _____ (Also complete Section E. of the Election Form)

3. Opt out of Default Electronic Delivery

- ☐ Client elects to opt out of electronic delivery of Notices and instead elect paper delivery until and unless eligible employees make a proactive election to receive Notices via electronic delivery.

By electing C.1 and/or C.2 or C.3 above, Client directs ADP to begin initiating delivery of Notices in accordance with the change(s) requested on the first business day after the date shown. ADP will not be responsible for delivery of any specific Notice Client adds to Plan Notice Delivery Services for which delivery as described in the Administration Manual would be scheduled to occur before ADP begins initiating delivery of the Notice as set forth in the Administration Manual. In the event Client requests a change that causes ADP to begin delivering a Notice to Newly-Eligible Employees, the definition of Newly-Eligible Employee set forth below shall apply in defining the scope of ADP's responsibility to deliver the Notice, using the effective date of the change in place of the date Plan Notice Delivery Services begin.



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D. Select/Remove Plan Notices

Notice	Add	Remove
Summary Plan Descriptions and Summaries of Material Modification		
Participant Fee Disclosure Statements		
Safe Harbor Notices and Supplemental Safe Harbor Notices		
QACA Notices		
EACA Notices		
Summary Annual Reports		
Notice of Internet Availability (initial notice via mail, and thereafter electronically as required)		

E. Select Delivery Group

Client directs ADP to deliver Notices to the following populations (check only one):

- ☐ Active Participants, Terminated Participants and Beneficiaries, and Newly-Eligible Employees
- ☐ Active Participants and Terminated Participants and Beneficiaries (excluding Newly-Eligible Employees)
- ☐ Terminated Participants and Beneficiaries only

NOTE:

If Client elects delivery of the Summary Annual Report ("SAR"), ADP will deliver the SAR to all individuals who were Active Participants or Terminated Participants and Beneficiaries during the Form 5500 plan year according to ADP's records, regardless of any election in Section E above.

If Client has elected Third Party Administrator Services, ADP shall not be responsible for initiating delivery of the Summary Annual Report for any year for which the Third Party Administrator has prepared the Plan's Form 5500.

IRS regulations do not require delivery of Safe Harbor, QACA, or EACA Notices to Terminated Participants and Beneficiaries. Notwithstanding any Client election to have Notices delivered to Terminated Participants and Beneficiaries generally, ADP will not deliver these Notices to Terminated Participants and Beneficiaries.

"Active Participants" include the following as indicated on ADP's recordkeeping system:

- Currently eligible non-participating employees;
- Currently-eligible participants

"Terminated Participants and Beneficiaries" include the following as indicated on ADP's recordkeeping system:

- Terminated Plan participants with account balances;
- Beneficiaries of deceased participants with an account balance; and
- Alternate payees with an account balance under a "Qualified Domestic Relations Order" as provided for under section 414(p) of the Internal Revenue Code (a "QDRO").



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“Newly-Eligible Employees” include the following as indicated on ADP’s recordkeeping system:

- Employees with an initial Plan entry date on or after the date Plan Notice Delivery Services begin (see below) that has been entered, affirmatively approved, or deemed approved by you as required by ADP’s systems and operational framework.
- Beneficiaries of deceased participants with an account balance; and
- Alternate payees with an account balance under a QDRO.

ACKNOWLEDGEMENT:

By signing this Election Form, the undersigned, on behalf of Client:

- If Client is electing to begin or modify Plan Notice Delivery Services,
 - Acknowledges s/he has read and agrees to the terms of the Appendix to the Administrative Services Agreement attached to this Election Form, which shall supersede any Plan Notice Delivery Services Appendix currently in effect between Client and ADP.
 - Acknowledges that the Administration Manual contains a detailed explanation of how Plan Notice Delivery Services operate for specific Notices and situations, including but not limited to situations in which Client remains responsible for Notice delivery.
- If Client is electing to terminate Plan Notice Delivery Services,
 - Acknowledges that the terms of the Plan Notice Delivery Services Appendix to the Administrative Services Agreement currently in effect between Client and ADP shall remain in effect through the date Plan Notice Delivery Services are terminated and will not be superseded by the Appendix attached to this Election Form.
- Represents that s/he is a responsible plan fiduciary authorized to receive the supplement/update to ADP’s Compensation and Fee Disclosure Statement attached to this Election Form, or is receiving said supplement/update on behalf of a responsible plan fiduciary, for purposes of Section 408(b)(2) of the Employee Retirement Income Security Act of 1974, as amended (“ERISA”).
- Acknowledges that s/he has reviewed the supplement/update to ADP’s Compensation and Fee Disclosure Statement attached to this Election Form and agrees to ADP’s fees as set forth therein.
- Acknowledges that this Election Form must be received by ADP fully executed and in good order at least ten (10) business days before the date entered in Section A, B, or C, as applicable, to be implemented on that date.

PLAN SPONSOR SIGNATURE

By: Ann Maynard

Title: _____

Date: 3/24/2021

ADP Plan Number: _____

Plan Name: _____



APPENDIX to the Administrative Services Agreement Plan Notice Delivery Services

This Appendix to the Administrative Services Agreement between Client and ADP (the “Agreement”) will be effective as of the date specified in the ADP election form completed by Client to elect or change Plan Notice Delivery Services and supersedes any prior Appendix governing Plan Notice Delivery Services. Unless defined herein, capitalized terms shall have the same meaning as in the Agreement.

By electing Plan Notice Delivery Services, Client directs ADP to deliver notices and disclosures within the scope of the Plan Notice Delivery Services that are selected by the Client (collectively, the “Notices”) to Active Participants, Newly-Eligible Employees, and/or Terminated Participants and Beneficiaries, as selected by Client, as provided herein.

Plan Notice Delivery Services are generally designed to meet the timing requirements for Notices imposed by the Internal Revenue Service and Department of Labor. Nonetheless, there may be situations where the Notice delivery timeframe(s) under Plan Notice Delivery Services for a particular Notice or category of Notice recipients does not meet a requirement applicable to a particular plan or given the facts and circumstances of a particular notice recipient. Client acknowledges that it remains responsible for any use it may make of the Plan Notice Delivery Services in complying with laws and governmental regulations governing Plan administration, including but not limited to determining whether the timing of Notices delivered under the Plan Notice Delivery Services is appropriate for administration of its Plan. Client further acknowledges that the Administration Manual contains a detailed explanation of how Plan Notice Delivery Services operate for specific Notice and situations, including but not limited to situations in which Client remains responsible for Notice delivery.

1. Groups to Whom Notices May be Delivered

As used in this Appendix, the terms “Active Participants,” “Terminated Participants and Beneficiaries,” and “Newly-Eligible Employees” are defined as follows:

- A. “Active Participants” include the following as indicated on ADP’s recordkeeping system:
 - (i) Currently eligible non-participating employees;
 - (ii) Currently-eligible participants
- B. “Terminated Participants and Beneficiaries” include the following as indicated on ADP’s recordkeeping system:

- (i) Terminated Plan participants with account balances;
 - (ii) Beneficiaries of deceased participants with an account balance; and
 - (iii) Alternate payees with an account balance under a “Qualified Domestic Relations Order” as provided for under section 414(p) of the Code.
- C. “Newly-Eligible Employees” include the following as indicated on ADP’s recordkeeping system:
- (i) Employees with an initial Plan entry date on or after the date Plan Notice Delivery Services begin as defined in the Administration Manual that has been entered, affirmatively approved, or deemed approved by Employer as required by ADP’s systems and operational framework. If ADP calculates eligibility for a Employer without a requirement for affirmative Employer approval, any Employee listed on the ADP recordkeeping system as a Newly-Eligible Employee at the time ADP initiates Notice delivery for Newly-Eligible Employees will be treated as a Newly-Eligible Employee for purposes of Plan Notice Delivery Services. Notwithstanding the preceding, “Newly-Eligible Employees” will not include any employees for whom ADP will not perform Plan Notice Delivery Services as set forth in Section 4 of this Appendix.
 - (ii) Beneficiaries of deceased participants with an account balance; and
 - (iii) Alternate payees with an account balance under a “Qualified Domestic Relations Order” as provided for under section 414(p) of the Code.

2. When Plan Notice Delivery Services Will Begin

ADP will begin initiating delivery of Notices for the Plan as described in the Administration Manual. ADP will not be responsible for delivery of any specific Notice for which delivery as described in the Administration Manual would be scheduled to occur before ADP begins initiating Notices generally. **Client is specifically referred to Section 1 of this Appendix (including but not limited to the definition of “Newly-Eligible Employee”) and the Administration Manual’s explanation of timeframes for delivery of Notices for**



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other provisions that may affect the manner in which Delivery Services begin for a given population or type of Notice).

3. Timeframes for Delivery of Notices

ADP will initiate delivery of specific Notices in accordance with the timeframes set forth in the Administration Manual. **Client expressly acknowledges that ADP's ability to deliver any Notice as provided below is subject to Client's performance of Notice-specific requirements specified in the Administration Manual.** ADP will not be responsible for timeliness of Notices sent late due to eligibility being approved or entered by Client less than 45 days before a Newly-Eligible Employee's Plan entry date or arising from a delay by Client in confirming whether an employee has satisfied the Plan's eligibility service requirements.

Notwithstanding the foregoing, Client acknowledges that as a convenience to Client, ADP will still initiate delivery of Notices to Newly-Eligible Employees in "immediate" or short term eligibility service situations (i.e., where a Newly-Eligible Employee's Plan entry date is less than 45 days after Client approval or entry). In this case, delivery initiation will occur as soon as administratively practicable, and Client will be responsible for delivering any Notice it determines should be delivered sooner.

4. Exclusions from Plan Notice Delivery Services

The following are in addition to any Notice-specific exclusions that may be set forth in the Administration Manual.

- A. Notwithstanding any agreement by ADP to deliver Notices to Newly-Eligible Employees, Client acknowledges that it will remain responsible for delivery of Notices to Newly-Eligible Employees for any "immediate" or short eligibility service situation that may arise under the Plan.
- B. ADP will not deliver Newly-Eligible Employee Notices to Employees who make a rollover contribution into the Plan before meeting the Plan's eligibility service requirements. Delivery of any such Notice will be the responsibility of Client.

5. Notice Form and Content

ADP will prepare all Notices in the form of ADP's standard templates for such Notices and based on the information regarding Client's Plan contained in ADP's recordkeeping system. ADP shall have no obligation to customize

ADP's templates for Notices. Notwithstanding ADP's agreement to provide Plan Notice Delivery Services, ADP will continue to provide a copy of all Notices to Client in advance, either by delivering a copy to Client or posting to the Plan Sponsor Website on an ongoing basis in accordance with ADP's standard operational processes so that Client may deliver said Notices to the extent Client remains responsible for such delivery under the terms of this Agreement or to the extent Client believes it necessary or appropriate to do so in a given circumstance in order to administer its Plan in accordance with applicable law. Unless Client notifies ADP in writing of an error in a Notice at least five (5) business days before ADP is scheduled to initiate delivery in accordance with this Appendix or the Administration Manual, Client will be deemed to have approved the content of said Notice.

6. Method of Delivery: Bad or Missing Addresses

- A. ADP will deliver Notices delivered in hard copy via first class mail at the address in ADP's records as supplied or verified by Client (or by a Terminated Participant) and using Client's mailing address in ADP's records as the return address for undeliverable mail. If an individual has been flagged in ADP's records as having a missing or bad address, ADP will not attempt to deliver Notices to that individual until a corrected address has been provided to ADP. If an individual has not yet been flagged in ADP's records as having a missing or bad address but is missing a required address element at the time of mailing, ADP will use Client's mailing address in ADP's records at the time ADP initiates delivery in lieu of the individual's address.

To the extent ADP makes electronic delivery available to deliver any Notices in connection with the Plan Notice Delivery Services, Client hereby consents to the electronic delivery of Notices and appoints ADP as its designee to receive from the Client or Participants (which includes terminated employees, beneficiaries and alternate payees), to collect, use and store Participants' electronic addresses (including e-mail addresses, mobile phone numbers capable of receiving written messages, and/or any alternate electronic addresses) received by ADP in connection with any ADP services provided to the Client, and for the purposes of delivering such Notices or such other Plan related documents as directed by the Employer. ADP shall electronically deliver such Notices to such electronic address, or deliver notification of the availability of such



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Notices on the Participant website, at such times and in combination with such other Notices as set out in the Plan Administration Manual or otherwise provided in regulatory guidance, to the electronic address in ADP's records provided by Client or Participant, except to the extent a Participant elects out of electronic delivery, in which case paper copies of Notices shall be delivered via USPS; if a paper copy is delivered, the fee for the mailing of hard copy Notice will be in the amount provided on, and charged by the method described in the ADP Compensation and Fee Disclosure Statement located on the Plan Sponsor Website.

If electronic delivery of the Notice or notification is unsuccessful (including any attempted delivery to the electronic addresses provided by the Participant or Client or alternate electronic addresses), ADP shall deliver the electronically undelivered Notice(s) in hard copy via first class mail to the Participant's address listed in ADP records, as soon as practicable following ADP's receipt of notification that the Participant did not receive the Notice or notification through the electronic communication.

The fee for the mailing of the hard copy form of the Notice will be in the amount reflected on, and charged by the method described in the ADP Compensation and Fee Disclosure Statement located on the Plan Sponsor Website. Future Notices to such Participants shall be delivered to such Participants via USPS first class mail for such fee, unless and until the Client or Participant updates the e-mail or other electronic address or ADP is notified that the mailing address is not valid. The Client is responsible for keeping electronic addresses and mailing addresses of Participants current and for locating participants with bad electronic or mailing addresses. ADP shall not be responsible for informing Participants that their e-mail or other electronic addresses are invalid.

- B. Client shall be responsible for delivering any Notice delivered or returned to Client's address; locating participants, beneficiaries, and alternate payees with missing or bad addresses; and providing corrected addresses to ADP. Client will alert its employees who process incoming mail to identify Notices delivered or returned to Client's address so that such mail is forwarded to an appropriate employee of Client for this purpose. If Client cannot provide a corrected address for an individual whose Notice is delivered or returned to Client's address, ADP will flag the individual's record as having a missing or

bad address if directed to do so by Client and will thereafter suppress Notice delivery for that individual until Client provides a corrected address to ADP.

- C. ADP is not responsible for failure to deliver any Notice due to an incorrect, missing or bad mailing address or email address. Delivery of any Notice that is delivered or returned to Client or for which ADP does not initiate delivery due to a missing or bad address flag in ADP's records will be the responsibility of Client.
- D. Notices will be presented in black and white, will not be customized with any Client logo, and will not include any other formatting or design customization.

7. Client-Initiated Changes to/Termination of Plan Notice Delivery Services

- A. In the event Client wishes to make a change to the Notices and/or populations for which Participant Notice Delivery Services are provided, Client shall provide ADP at least 60 days' advance notice using the form provided by ADP for this purpose. ADP will begin initiating delivery of Notices in accordance with the change on the first business day after the date determined by mutual agreement between Client and ADP. ADP will not be responsible for delivery of any specific Notice Client adds to Plan Notice Delivery Services for which delivery as described in the Administration Manual would be scheduled to occur before ADP begins initiating delivery of the Notice as set forth in this Section 7. In the event Client requests a change that causes ADP to begin delivering a Notice to Newly-Eligible Employees, the definition of Newly-Eligible Employee set forth in Section 1 of this Appendix shall apply in defining the scope of ADP's responsibility to deliver the Notice, using the effective date of the change in place of the date Delivery Services begin.
- B. Notwithstanding any provision of the Agreement to the contrary, if ADP's fee for Participant Notice Delivery Services is charged on a basis other than by the Notice (for example, if ADP's fee is included in ADP's Plan-level recordkeeping fee), Client acknowledges that ADP has determined the portion of its fee attributable to Plan Notice Delivery Services based on assumptions regarding the Notices and/or populations Client has elected under Plan Notice Delivery Services. If Client requests a change to Plan Notice Delivery Services that increases the types of Notices or the populations covered by Plan Notice Delivery Services, ADP reserves the right to increase the portion of its fee attributable to Plan



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Notice Delivery Services in order to reflect the impact of the change.

- C. Except as provided in Section 7(D), Client may terminate Plan Notice Delivery Services on 30 days' notice and may do so without terminating recordkeeping and administrative Services under the Agreement. If Client terminates Plan Notice Delivery Services in accordance with the preceding sentence, ADP will no longer initiate delivery of Notices after the date as of which Plan Notice Delivery Services are terminated.
- D. If Client wishes to terminate Plan Notice Delivery Services in connection with a Product-to-Product Conversion will be required to provide at least 60 days' advance notice to ADP.
- E. In the event Client terminates its Agreement with ADP or merges the Plan into another plan, ADP will not be responsible for Notices for which ADP has not initiated delivery as of the date ADP ceases to provide recordkeeping and administrative Services for the Plan or the effective date of the merger, as applicable. In the event Client terminates the Plan, ADP will not be responsible for Notices for which it has not initiated delivery following the date as of which ADP processes the Plan's termination on ADP's recordkeeping system, notwithstanding any ongoing recordkeeping and administrative Services ADP may provide pending distribution of the Plan's assets in connection with its termination.

8. Reservation of Rights: Termination of Plan Notice Delivery Services by ADP

- A. ADP reserves the right to terminate, suspend or otherwise modify all or any portion of the Plan Notice Delivery Services in light of regulatory guidance that ADP, in its sole discretion, determines changes the content or timing requirements applicable to a Notice or otherwise makes it administratively impracticable to deliver a Notice systematically. ADP may exercise this right while continuing to provide all other Services under the terms of its Agreement with Client. ADP will provide notice of such a determination at least 30 days in advance of the termination, suspension or modification to the extent administratively practicable.

- B. ADP may terminate Plan Notice Delivery Services for any reason upon 90 days' advance notice to Client. ADP may exercise this right while continuing to provide all other Services under the terms of its Agreement with Client.
- C. If ADP terminates or suspends delivery of a specific Notice or Plan Notice Delivery Services generally under this Section 8, ADP will stop initiating delivery of the Notice or Notices, as applicable, immediately following the date as of which Plan Notice Delivery Services are terminated or suspended. Client will be responsible for all mailings to be sent after the date as of which Plan Notice Delivery Services are terminated.
- D. Subject to any period of time that must expire under the Agreement before a fee increase may be imposed, ADP retains the right to amend the fees charged by ADP for Plan Notice Delivery Services prospectively upon sixty (60) days' prior written notice to Client, provided that, notwithstanding the notice provisions for termination of Plan Notice Delivery Services under Section 7 of this Appendix, Client may notify ADP in writing at any time prior to the end of such sixty (60) day period specifically stating that it does not accept such amendment and that, as a direct result thereof, it will terminate this Appendix (a "Fee Amendment Termination Notice"). A Fee Amendment Termination Notice under this Section 8 will be effective following the expiration of thirty (30) days from the date ADP receives such notice from Client (the "Fee Amendment Termination Date"). If Client provides a Fee Amendment Termination Notice to ADP that meets the requirements of this Section 8, subject to the immediately following sentence, ADP (a) will not implement the amendment to its fees for Plan Notice Delivery Services, and (b) will terminate Plan Notice Delivery Services on the Fee Amendment Termination Date.
- E. ADP reserves the right to make available an electronic method of delivery for Notices when and to the extent administratively feasible as determined by ADP in its sole discretion.



Supplemental Disclosure/Disclosure Update

This information supplements/updates any previous compensation and fee disclosure provided to you by ADP, Inc. ("ADP") under Section 408(b)(2) of the Employee Retirement Income Security Act of 1974.

For clients electing to **add or modify** Plan Notice Delivery Services, ADP will charge the following recurring, plan-level fee beginning on the date indicated in Section A or C, as applicable, of the Plan Notice Delivery Services Election Form.

- ☐ No additional charge*
- ☐ Fees for Plan Notice Delivery Services will be charged/changed as follows:*
- ☐ Included in the monthly Per-Participant Fee. New monthly Per-Participant Fee will be \$_____ per participant
- ☐ \$_____ per notice mailed (monthly fee will be based on # of notices mailed)

For clients electing to **terminate** Plan Notice Delivery Services, the change shown below will be effective on the date indicated in Section B of the Plan Notice Delivery Services Election Form .

- ☐ Fees charged per notice mailed – ADP will no longer charge the per-notice fee for Plan Notice Delivery Services.
- ☐ Fees included in the monthly Per-Participant Fee – ADP will reduce the monthly Per-Participant Fee to reflect termination of Plan Notice Delivery services. The new monthly Per-Participant Fee will be \$_____ per participant.

* Plan Notice Delivery Services include distribution of select notices and disclosures to eligible employees electronically or by mail. ADP may agree to deliver notices outside the scope of its standard offering. Unless ADP notifies Plan Sponsor to the contrary, ADP will charge a fee for additional notice delivery in the amount or manner disclosed above; otherwise, the fee shall be agreed upon between ADP and the Plan Sponsor.